

1. The debtor has the right to know the name and address of the agency that prepared the report that was used to deny credit. To obtain that information, it is necessary to make the request in writing to any creditor that has refused credit.
2. Anyone refused credit has the right to review his or her file with the reporting agency. That person also has the right to obtain a copy of the case history file. The request must be made within thirty days of notification of credit refusal.
3. Someone who is refused credit has the right to challenge the information in the credit report if that information is inaccurate. If the dispute cannot be resolved, a letter containing the debtor's version of the dispute must be placed in the file and sent to prospective lenders.
4. Negative information cannot be reported beyond seven years, with the exception of a bankruptcy, which can be reported for up to ten years.

Because the Fair Credit Reporting Act forms the foundation for all cooperative credit reporting in this country, there are several other aspects of the Act with which all consumers should be familiar.

I have dealt with most of the major creditors in our country at one time or the other on the behalf of couples I have counseled, and as a member of the Consumer Counseling Service Board I have found that most creditors are willing to go to great lengths to help anyone in financial trouble who is trying to be honest and repay what is owed. But when a debtor lies and defaults on commitments that were made, he or she is likely to be faced with powerful and hostile adversaries. It is always best to be totally honest and not to make promises that cannot be kept just for the sake of temporary peace.

I also have found that few things make a better impression on a creditor than a well-thought-out budget plan, a list of all other creditors, and a credit card cut into several pieces as a testimony of commitment.